

Our law is partly written, partly unwritten, as among the 3
Greeks. The written law consists of statutes, plebiscites,
senatusconsults, enactments of the Emperors, edicts of the
magistrates, and answers of those learned in the law. A 4
statute is an enactment of the Roman people, which it used
to make on the motion of a senatorial magistrate, as for
instance a consul. A plebiscite is an enactment of the com-
monalty, such as was made on the motion of one of their
own magistrates, as a tribune. The commonalty differs
from the people as a species from its genus ; for ' the people '
includes the whole aggregate of citizens, among them
patricians and senators, while the term ' commonalty ' em-
braces only such citizens as are not patricians or senators.
After the passing however of the statute called the *lex*
Hortensia, plebiscites acquired for the first time the force of
statutes. A senatusconsult is a command and ordinance of 5
the senate, for when the Roman people had been so increased
that it was difficult to assemble it together for the purpose
of creating statutes, it seemed right that the senate should be
consulted instead of the people. Again, what the Emperor 6
determines has the force of a statute, the people having con-
ferred on him all their authority and power by the *lex regia*,
which was passed concerning his office and authority. Con-
sequently, whatever the Emperor settles by rescript, or de-
cides in his judicial capacity, or ordains by edicts, is clearly a
statute : and these are what are called constitutions. Some
of these of course are personal, and not to be followed as
precedents, since this is not the Emperor's will ; for a favour
bestowed on individual merit, or a penalty inflicted for in-
dividual wrongdoing, or relief given without a precedent, do
not go beyond the particular person : though others are
general, and bind all beyond a doubt. The edicts of the prae- 7
tors too have no small legal authority, and these we are used
to call the *jus honorarium*, because those who occupy posts of
honour in the state, in other words the magistrates, have given
authority to this branch of law. The curule aediles also used
to issue an edict relating to certain matters, which forms part
of the *jus honorarium*. The answers of those learned in the 8
law are the opinions and views of persons authorised to